

Court No. - 59

Case :- CONTEMPT APPLICATION (CIVIL) No. - 320 of 2018

Applicant :- Salik Ram And Anr

Opposite Party :- Jhabbu Lal (Exe. Engineer South Division)

Counsel for Applicant :- Mr Raj Kumar Srivastava

Hon'ble Yashwant Varma,J.

Heard learned counsel for the applicants.

This petition has been instituted alleging non-compliance of directions issued on 22 May 2017. The applicant had raised a dispute with respect to an electricity bill which stood raised against them. The Court consequently taking note of the same had disposed of the petition by providing that the competent authority would proceed in the matter in accordance with Clause 6.5 of the **U.P. Electricity Supply Code, 2005**. Learned counsel for the applicants despite repeated queries was unable to apprise the Court as to whether the applicants had made the pre-deposit as contemplated under Clause 6.5 read with Clause 6.7 of the Code. These provisions clearly indicate that unless a pre-deposit is made or an application is preferred for its waiver, the representation cannot be decided.

In the absence of any evidence which may establish the applicants having complied with the aforesaid mandated procedure, this Court finds itself unable to entertain this contempt petition, which shall consequently stand **dismissed**.

Order Date :- 24.1.2018

Arun K. Singh